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NO. 61. SATURDAY, JANUARY 13, 1722. ***How Free Governments Are To Be Framed So As To Last, And How They Differ From Such As Are Arbitrary.*** (Trenchard)

Sir,

The most reasonable meaning that can be put upon this apothegm, that *virtue is its own reward*, is, that it seldom meets with any other. God himself, who having made us, best knows our natures, does not trust to the intrinsic excellence and native beauty of holiness alone, to engage us in its interests and pursuits, but recommends it to us by the stronger and more affecting motives of rewards and punishments. No wise man, therefore, will in any instance of moment trust to the mere integrity of another. The experience of all ages may convince us, that men, when they are above fear, grow for the most part above honesty and shame: And this is particularly and certainly true of societies of men, when they are numerous enough to keep one another in countenance; for when the weight of infamy is divided amongst many, no one sinks under his own burden.

Great bodies of men have seldom judged what they ought to do, by any other rule than what they could do. What nation is there that has not oppressed any other, when the same could be done with advantage and security? What party has ever had regard to the principles which they professed, or ever reformed the errors which they condemned? What company, or particular society of merchants or tradesmen, has ever acted for the interest of general trade, though it always filled their mouths in private conversation?

And yet men, thus formed and qualified, are the materials for government. For the sake of men it is instituted, by the prudence of men it must be conducted; and the art of political mechanism' is, to erect a firm building with such crazy and corrupt materials. The strongest cables are made out of loose hemp and flax; the world itself may, with the help of proper machines, be moved by the force of a single hair; and so may the government of the world, as well as the world itself. But whatever discourses I shall hereafter make upon this great and useful subject, I shall confine myself in this letter to free monarchical constitutions alone, and to the application of some of the principles laid down in my last.

It is there said, that when the society consists of too many, or when they live too far apart to be able to meet together, to take care of their own affairs, they can not otherwise preserve their liberties, than by choosing deputies to represent them, and to act for them; and that these deputies must be either so numerous, that there can be no means of corrupting the majority; or so often changed, that there shall be no time to do it so as to answer any end by doing it. Without one of these regulations, or both, I lay it down as a certain maxim in politicks, that it is impossible to preserve a free government long.

I think I may with great modesty affirm, that in former reigns the people of England found no sufficient security in the number of their representatives. What with the crowd of offices in the gift of the crown, which were possessed by men of no other merit, nor held by any other tenure, but merely a capacity to get into the House of Commons, and the disservice which they could and would do their country there: What with the promises and expectations given to others, who by court-influence, and often by court-money, carried their elections: What by artful caresses, and the familiar and deceitful addresses of great men to weak men: What with luxurious dinners, and rivers of Burgundy, Champaign, and Tokay, thrown down the throats of gluttons; and what with pensions, and other personal gratifications, bestowed where wind and smoke would not pass for current coin: What with party watch-words and imaginary terrors, spread amongst the drunken 'squires, and the deluded and enthusiastick bigots, of dreadful designs in embryo, to blow up the Church, and the Protestant interest; and sometimes with the dread of mighty invasions just ready to break upon us from the man in the moon: I say, by all these corrupt arts, the representatives of the English people, in former reigns, have been brought to betray the people, and to join with their oppressors. So much are men governed by artful applications to their private passions and interest. And it is evident to me, that if ever we have a weak or an ambitious prince, with a ministry like him, we must find out some other resources, or acquiesce in the loss of our liberties. The course and transiency of human affairs will not suffer us to live always under the present righteous administration.

So that I can see no means in human policy to preserve the publick liberty and a monarchical form of government together, but by the frequent fresh elections of the people's deputies: This is what the writers in politicks call rotation of magistracy. Men, when they first enter into magistracy, have often their former condition before their eyes: They remember what they themselves suffered, with their fellow-subjects, from the abuse of power, and how much they blamed it; and so their first purposes are to be humble, modest, and just; and probably, for some time, they continue so. But the possession of power soon alters and vitiates their hearts, which are at the same time sure to be leavened, and puffed up to an unnatural size, by the deceitful incense of false friends, and by the prostrate submission of parasites. First, they grow indifferent to all their good designs, then drop them: Next, they lose their moderation; afterwards, they renounce all measures with their old acquaintance and old principles; and seeing themselves in magnifying glasses, grow, in conceit, a different species from their fellowsubjects; and so by too sudden degrees become insolent, rapacious and tyrannical, ready to catch at all means, often the vilest and most oppressive, to raise their fortunes as high as their imaginary greatness. So that the only way to put them in mind of their former condition, and consequently of the condition of other people, is often to reduce them to it; and to let others of equal capacities share of power in their turn: This also is the only way to qualify men, and make them equally fit for dominion and subjection.

A rotation therefore, in power and magistracy, is essentially necessary to a free government: It is indeed the thing itself; and constitutes, animates, and informs it, as much as the soul constitutes the man. It is a thing sacred and inviolable, where-ever liberty is thought sacred; nor can it ever be committed to the disposal of those who are trusted with the preservation of national constitutions: For though they may have the

power to model it for the publick advantage, and for the more effectual security of that right; yet they can have none to give it up, or, which is the same thing, to make it useless.

The constitution of a limited monarchy, is the joint concurrence of the crown and of the nobles (without whom it cannot subsist) and of the body of the people, to make laws for the common benefit of the subject; and where the people, through number or distance, cannot meet, they must send deputies to speak in their names, and to attend upon their interest: These deputies therefore act by, under, and in subserviency to the constitution, and have not a power above it and over it.

In Holland, and some other free countries, the states are often obliged to consult their principals; and, in some instances, our own Parliaments have declined entering upon questions of importance, till they had gone into the country, and known the sentiments of those that sent them; as in all cases they ought to consult their inclinations as well as their interest. Who will say, that the Rump, or fag-end of the Long Parliament of forty-one, had any right to expel such members as they did not like? Or to watch for their absence, that they might seize to themselves, or give up to any body else, the right of those from whose confidence and credulity they derived the authority which they acted by?

With thanks to God, I own, that we have a prince so sensible of this right, and who owes his crown so entirely to the principles laid down, and I think fully proved in these letters; that it is impossible to suspect, either from his inclinations, his interest, or his known justice, that he should ever fall into any measures to destroy that people, who have given him his crown, and supported him in it with so much generosity and expense; or that he should undermine, by that means, the ground upon which he stands. I do therefore the less regard the idle suspicions and calumnies of disaffected men, who would surmise, that a design is yet on foot to continue this Parliament; a reflection the most impudent and invidious that can be thrown upon his Majesty, his ministers, or his two houses; and a reflection that can come from none but professed, or at least from concealed, Jacobites.

It is no less than an insinuation, that our most excellent sovereign King George has a distrust of his faithful subjects; that he will refuse them the means of their own preservation, and the preservation of that constitution which they chose him to preserve; that he will shut his ears against their modest, just, and dutiful complaints; and that he apprehends danger from meeting them in a new and free-chosen Parliament. This is contrary to the tenor of his whole life and actions; who, as he has received three crowns from their gift, so he lies under all the ties of generosity, gratitude, and duty, to cherish and protect them, and to make them always great, free, and happy.

It is a most scandalous calumny upon his faithful servants, to suggest that any of them, conscious of guilt and crimes, feared any thing from the most strict and rigorous inspection into their proceedings. Some of them have already stood the fiery trial, and come off triumphant with general approbation. They have, besides, the advantage of his Majesty's most gracious pardon, which they did not want, and which was not

passed for their sakes. Who therefore can suspect, that patriots so uncorrupt, so prudent, and so popular, will dishonour their master, give up the constitution, ruin their country, and render themselves the objects of universal scorn, detestation, and cursing, by advising the most odious, dangerous, and destructive measures, that ever counsellors gave a prince?

It is a most ungrateful return to our illustrious representatives, to suggest, that men who have left their domestick concerns to serve their country at their own expence, and without any personal advantages, and have bestowed their labours upon the publick for a much longer time than their principals had at first a right to expect from them; and have, during all that time, been rectifying the abuses which have crept into our constitution; and have assisted his Majesty in going through two very useful and necessary wars, and have regulated our finances, and the expence of our guards and garrisons, and corrected many abuses in the fleet and the civil administration; and have taken effectual vengeance of all those who were concerned in promoting, procuring, aiding, or assisting the late dreadful South-Sea project: I say, after so many things done by them for the publick honour and prosperity, it is the basest ingratitude to surmise, that any of them would give up that constitution which they were chosen, and have taken so much pains, to preserve.

I do indeed confess, if any invasion were to be feared from Muscovy, Mecklenburg, Spain, or Civita Vecchia; if new provinces were to be obtained abroad, new armies to be raised, or new fleets to be equipped, upon warlike expeditions; if new provision were wanting for the Civil List, and new taxes to be levied, or new companies to be erected to pay off the publick debts; if the universities were to be farther regulated, or any inspection were necessary into the increase of fees and exactions of civil officers; if there were the least ground to suspect bribery or corruption in a place where it should not be; or if there were any new project on foot to banish tyrannical and popish principles far out of the land: I say, that in such a scene of affairs, I dare not be altogether so positive in my assertion, that we ought to venture, and at all events to leave to chance, that which we are in possession of already. But as we are at present in the happy state of indolence and security, at peace with all the world and our own consciences; as little more money can be raised from the people, most of it being already in hand, which, according to the rules of good policy, unite dominion and property; as our benefactors too are generous and honourable, our boroughs not insensible or ungrateful, nor the counties themselves inexorable to shining merit; So it is much to be hoped, that another Parliament may be chosen equally deserving, and as zealous for the publick interest; or, at worst, there are honest and tried measures at hand, which will undoubtedly make them so. And I offer this as a conclusive, and I think a most convincing, argument, that the kingdom will be obliged with a new election.

T. I am, &c.